



U.S. Department
of Transportation

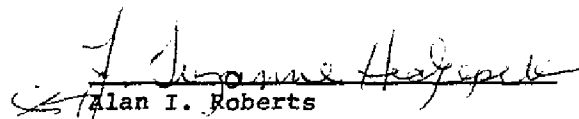
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 8287 (EXTENSION)
THIRD REVISION December 10, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8287 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 16 1993

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Rohm and Haas Company
Philadelphia, PA

April 26, 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 10 1991

DOT-E 8287
(THIRD REVISION)

1. Rohm & Haas Company, Philadelphia, Pennsylvania, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of a corrosive liquid in a DOT Specification 12B fiberboard box with no more than four inside polyethylene bottles with vented closures (securely closed in polyethylene film bags with absorbent material), and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Rohm and Haas Company's applications dated June 14, 1990 and June 26, 1991, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Isothiazilone microbicide, classed as a corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.245(a)(16), 178.35a-2(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 12B fiberboard box with inside polyethylene bottles with vented closures, not over ten-pint capacity each. Each bottle to be completely contained inside of a bag of polyethylene film (of minimum 0.006-inch thickness) with absorbent material. No more than four such packages to be placed inside of the DOT-12B fiberboard box.

Packages must display labels showing orientation "THIS END UP" and advise: "Vented container - Do not place on side - Must be upright".

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. July 31, 1993.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety



December 10, 1991
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590.
Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.